

HOUSE No. 1255

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher M. Markey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reducing unnecessary delays in patient care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/17/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/22/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/22/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>2/11/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/6/2025</i>

HOUSE No. 1255

By Representative Markey of Dartmouth, a petition (accompanied by bill, House, No. 1255) of Christopher M. Markey and others relative to patient care. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1091 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reducing unnecessary delays in patient care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 25 of chapter 176O of the General Laws, as
2 appearing in the 2020 Official Edition, is hereby amended by striking out the words “2 business
3 days” and inserting in place thereof the following:- 24 hours.

4 SECTION 2. Said subsection (b) of said section 25 of said chapter 176O, is hereby
5 further amended by inserting at the end thereof the following:- Payers and entities acting for
6 payers under contract shall not use appeals processes or other administrative means to delay
7 responding a to completed prior authorization request from a provider in accordance with this
8 subsection. The division shall conduct audits to ensure compliance with this subsection.